

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Abigail Shuster	Team: Squad #15	CCRB Case #: 201600021	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 12/19/2015 1:30 AM	Location of Incident: In front of 2701 Sedgwick Avenue; 50th Precinct stationhouse	18 Mo. SOL 6/19/2017	Precinct: 50		
Date/Time CV Reported Mon, 12/21/2015 7:05 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/31/2015 11:32 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Musolino	20814	952041	050 PCT
2. POM Joseph Rodriguez	28899	931072	050 PCT
3. POM Viet Dang	19610	951653	050 PCT
4. POM John Galbo	04486	951751	050 PCT
5. An officer			050 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Oscar Nieves	28446	939117	050 PCT
2. SGT Kelvin Jaquez	02562	944272	050 PCT
3. POM Stephen Katsalidas	28724	950663	050 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Musolino	Abuse: In front of 2701 Sedgwick Avenue in the Bronx, Police Officer Robert Musolino frisked § 87(2)(b)	A . Substantiated
B . POM Robert Musolino	Abuse: In front of 2701 Sedgwick Avenue in the Bronx, Police Officer Robert Musolino searched § 87(2)(b)	B . Substantiated
C . POM Viet Dang	Abuse: In front of 2701 Sedgwick Avenue in the Bronx, Police Officer Viet Dang frisked § 87(2)(b)	C . Substantiated
D . POM John Galbo	Abuse: In front of 2701 Sedgwick Avenue in the Bronx, Police Officer John Galbo frisked § 87(2)(b)	D . Substantiated
E . POM Viet Dang	Abuse: In front of 2701 Sedgwick Avenue in the Bronx, Police Officer Viet Dang searched § 87(2)(b)	E . Exonerated
F . POM Robert Musolino	Abuse: In front of 2701 Sedgwick Avenue in the Bronx, Police Officer Robert Musolino searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	F . Unsubstantiated
G . POM Joseph Rodriguez	Abuse: In front of 2701 Sedgwick Avenue in the Bronx, Police Officer Joseph Rodriguez searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	G . Unsubstantiated
H . An officer	Abuse: In front of 2701 Sedgwick Avenue in the Bronx, an officer damaged § 87(2)(b)'s property.	H . Officer(s) Unidentified
I . An officer	Abuse: At 2701 Sedgwick Avenue in the Bronx, an officer searched § 87(2)(b)'s property.	I . Officer(s) Unidentified
J . An officer	Abuse: At 2701 Sedgwick Avenue in the Bronx, an officer seized § 87(2)(b)'s property.	J . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
K . POM Robert Musolino	Discourtesy: At the 50th Precinct stationhouse, Police Officer Robert Musolino spoke discourteously to § 87(2)(b)	K . Unsubstantiated

Case Summary

On December 19, 2015, at approximately 1:00am, § 87(2)(b) and § 87(2)(b) were stopped while their vehicle was double-parked in front of 2701 Sedgwick Avenue in the Bronx. PO Robert Musolino of the 50th Precinct then frisked § 87(2)(b) and allegedly searched her jacket (**Allegation A** and **Allegation B**).

PO John Galbo of the 50th Precinct removed § 87(2)(b) from the vehicle, at which time PO Viet Dang of the 50th Precinct and PO Galbo each frisked § 87(2)(b) (**Allegation C** and **Allegation D**). § 87(2)(b) while standing at the rear of the vehicle, informed the officers that he had a small quantity of marijuana inside of his jacket pocket, at which time PO Dang recovered the marijuana and searched § 87(2)(b)'s other pockets (**Allegation E**).

PO Musolino and PO Joseph Rodriguez of the 50th Precinct searched § 87(2)(b)'s vehicle (**Allegation F** and **Allegation G**). In doing so, an unidentified officer allegedly broke a plastic compartment, a sun visor, and multiple cigarettes (**Allegation H**). An unidentified officer also allegedly searched § 87(2)(b)'s purse, which was inside of the vehicle, and confiscated a container of prescription pills contained in the purse (**Allegation I** and **Allegation J**).

About twenty minutes after the incident concluded, § 87(2)(b) visited the 50th Precinct stationhouse to file a report regarding her license, which was lost during the vehicle stop. While at the stationhouse, PO Musolino allegedly said to her, "Maybe if your boyfriend wasn't running his mouth so fucking much, you'd have noticed I gave it back to you" (**Allegation K**). No summonses were issued during this incident.

Video footage was not located for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation during his sworn statement, § 87(2)(b)
- A FOIL request was filed on March 23, 2016, to determine whether any notices of claim were filed in regard to this incident. The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED].

Civilian and Officer CCRB Histories

- § 87(2)(b) was listed as a witness in case number § 87(2)(b) (BR 2).
- This is § 87(2)(b)'s first CCRB complaint (BR 2).
- This is PO Musolino's first CCRB complaint during his four-year tenure.
- During his four-year tenure, PO Dang has been the subject of eight previous CCRB allegations involving five cases, resulting in no substantiated allegations. § 87(2)(g)

- During his four-year tenure, PO Galbo has been the subject of four previous CCRB allegations, all of which were associated with case number 201502878. Of these four, the allegation that PO Galbo improperly arrested two individuals was substantiated, and the Board recommended Command Discipline A. The NYPD has yet to recommend discipline.
- PO Rodriguez, during his 13-year tenure, has been the subject of ten previous CCRB allegations involving six cases. No allegations were substantiated § 87(2)(g)

Findings and Recommendations

Allegation Not Pled

- § 87(2)(g)

Allegation A –Abuse of Authority – In front of 2701 Sedgwick Avenue in the Bronx, PO Robert Musolino frisked § 87(2)(b)

Although § 87(2)(b) did not report being frisked, PO Musolino acknowledged patting down § 87(2)(b)'s clothing after she exited from the vehicle. § 87(2)(g)

PO Musolino testified that he approached § 87(2)(b)'s vehicle with the intention of summoning her for double-parking. Immediately upon approach, PO Musolino detected a strong odor of marijuana emanating from the interior of the vehicle. He conversed with § 87(2)(b) while her window was rolled down, requesting her documentation, which she provided. He then instructed her to step out of the vehicle, which she did compliantly. He frisked her immediately after she exited from the vehicle. During PO Musolino's CCRB interview, the following exchange occurred between PO Musolino and Inv. Shuster:

Inv. Shuster: "And the reason for the frisk was what exactly?"

PO Musolino: "For my safety, and for her safety. For weapons."

Inv. Shuster: "Ok. Did you suspect her of being in possession of a weapon at that time?"

PO Musolino: "No."

Inv. Shuster: "Ok. So can you kind of elaborate on what you meant by 'frisking her for weapons'?"

PO Musolino: "She's stepping out of – the car smelled like marijuana, the interior portion of the vehicle smelled like marijuana, she was in the vehicle, and the gentleman was in the vehicle, she stepped out of the vehicle and it's procedure that I frisk her for weapons for my safety."

Inv. Shuster: "So was that sort of immediately after she stepped out, that you conducted that frisk?"

PO Musolino: "Yes."

Inv. Shuster: "Did you observe any bulges on her person?"

PO Musolino: "I don't recall." (BR 5).

A frisk requires reasonable suspicion that an individual is in possession of a weapon. People v. DeBour, 40 N.Y.2d 210 (1976)(BR 16).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Abuse of Authority – In front of 2701 Sedgwick Avenue in the Bronx, PO Robert Musolino searched § 87(2)(b)

§ 87(2)(b) alleged that, just prior to stepping out of her vehicle, she informed PO Musolino that she was going to put on her jacket. He replied, “No, I’ll do it,” and searched her jacket’s pockets before handing it back to her (BR 3)

Although § 87(2)(b) heard some conversation between PO Musolino and § 87(2)(b) regarding her jacket, he did not report observing the alleged search of the jacket and noted that he was focused on his own interactions with the officers happening on the other side of the vehicle (BR 4).

PO Musolino testified that he did not recall whether § 87(2)(b) wore a jacket or whether he searched the pocket of any jacket in her possession. No other officer testified to observing this search occur (BR 5-10).

§ 87(2)(g)

In tandem with the Patrol Guide Procedure 212-11’s legal demarcation between frisks and searches are the findings of People v. Thompson, 791 N.Y.S. 2d 872 (2004), which state that even in instances where officers find reasonable suspicion to frisk individuals, further justification for a search is required (BR18)(BR 17).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **substantiated**.

Allegation C – Abuse of Authority – In front of 2701 Sedgwick Avenue in the Bronx, PO Viet Dang frisked § 87(2)(b)

Allegation D – Abuse of Authority - In front of 2701 Sedgwick Avenue in the Bronx, PO John Galbo frisked § 87(2)(b)

§ 87(2)(b) alleged that, after he exited the vehicle, PO Dang asked him whether he had any drugs on his person. § 87(2)(b) acknowledged becoming frustrated at the officers having stopped him and § 87(2)(b) and repeatedly asking them why this was happening. PO Dang then placed § 87(2)(b) in handcuffs and asked him whether he had any contraband on him, at which time § 87(2)(b) told PO Dang that he had a bag of marijuana in his jacket pocket. PO Dang then removed the marijuana from § 87(2)(b)'s pocket, then searched the rest of his jacket pockets and at this time also frisked § 87(2)(b)'s waistband (BR 4).

PO Galbo testified that, immediately instructing § 87(2)(b) to exit from the vehicle and § 87(2)(b) complying, he asked him whether he had any weapons on him. § 87(2)(b) replied that he did not, and PO Galbo asked him for permission to perform a frisk for weapons. § 87(2)(b) gave his permission by saying, “Yes.” PO Galbo then frisked his waistband area, where he did not detect any objects (BR 6).

PO Dang, too, acknowledged frisking § 87(2)(b) after he stepped out of the vehicle. He smelled lit marijuana coming from § 87(2)(b)'s clothing as § 87(2)(b) came into closer proximity. While standing by the front passenger door, PO Dang frisked § 87(2)(b)'s waistband and the exterior of his jacket but did not feel any objects. Due to the odor, he asked § 87(2)(b) whether he had any marijuana on his person, and § 87(2)(b) told him, “I have a small clip,” and gestured toward his front right jacket pocket. PO Dang then entered the pocket toward which § 87(2)(b) had just gestured, and he recovered two bags of marijuana. He then searched the other pockets on § 87(2)(b)'s jacket but did not recover any additional contraband. Only then was § 87(2)(b) taken to the rear of the vehicle, where he became combative, bladed his body, clenched his fists, and shouted, prompting PO Dang to briefly handcuff him for safety purposes (BR 7).

§ 87(2)(g)

§ 87(2)(b) PO Galbo stated that he frisked § 87(2)(b) “just for my safety, when someone steps out of a vehicle, just to make sure there are no weapons, for my safety and for my partner’s safety. The circumstances of a car stop, you never know.” He affirmed that he did not suspect § 87(2)(b) of being in possession of a weapon and that he did not observe any bulges on § 87(2)(b)'s person. PO Dang similarly stated that he performed the frisk because § 87(2)(b) was out of the vehicle and we were in close proximity, and I just frisked him for my safety in case he had any small weapons on him.” When asked whether PO Dang suspected § 87(2)(b) of being in possession of a weapon, PO Dang replied that he did not. PO Dang also denied observing any bulges on § 87(2)(b)'s person (BR 6, BR 7).

A frisk requires reasonable suspicion that an individual is in possession of a weapon. People v. Debour, 40 N.Y.2d 210 (1976) (BR 16). Consent to search is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice, and when coercion of any kind is absent. Whether consent has been voluntarily given or is only a yielding to overbearing official pressure must be determined from the circumstances; an individual’s level of

cooperativeness throughout an incident is one factor to be considered in evaluating whether consent was freely given. People v. Gonzalez, 39 N.Y.2d 122 (1976)(BR 17).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

PO Galbo testified to asking for, and obtaining, consent from § 87(2)(b) No other officer reported hearing this exchange, § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **substantiated**.

Allegation E – Abuse of Authority – In front of 2701 Sedgwick Avenue in the Bronx, PO Viet Dang searched § 87(2)(b)

It is undisputed that, after § 87(2)(b) admitted to having a small quantity of marijuana on his person, he directed PO Dang to the jacket pocket containing it. According to both § 87(2)(b) and PO Dang, PO Dang then entered the pocket, removed the marijuana, and then searched the rest of the pockets in § 87(2)(b)'s jacket (BR 4, BR 7).

An individual is guilty of unlawful possession of marijuana when he or she knowingly and unlawfully possesses marijuana. New York State Penal Law 221.05 (BR 17).

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation E** be closed as **exonerated**.

Allegation F – Abuse of Authority - In front of 2701 Sedgwick Avenue in the Bronx, PO Robert Musolino searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation G – Abuse of Authority - In front of 2701 Sedgwick Avenue in the Bronx, PO Joseph Rodriguez searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g) it is undisputed that PO Musolino searched § 87(2)(b)'s vehicle after both occupants were removed, § 87(2)(g).

§ 87(2)(b) and § 87(2)(b) both reported that PO Musolino and PO Rodriguez searched § 87(2)(b)'s vehicle together. § 87(2)(b) stated that she observed them searching the front and back seats by opening all four doors and leaning their bodies inside. § 87(2)(b) corroborated these observations and reported that PO Rodriguez searched the passenger side and PO Musolino searched the driver's side. Both § 87(2)(b) and § 87(2)(b) estimated that the vehicle search alone lasted 20-25 minutes (BR 3, BR 4).

§ 87(2)(b) acknowledged being in possession of a small quantity of marijuana, which was ultimately recovered from his jacket pocket during this incident. He denied having smoked any marijuana on this date prior to being stopped by the officers. § 87(2)(b) similarly denied having smoked marijuana on this date, noting that she is only a cigarette smoker (BR 3, BR 4).

PO Musolino testified to searching the vehicle alone. PO Rodriguez could he recall whether he searched the vehicle or whether he observed any other officers do so. PO Galbo stated that he observed PO Musolino searching the vehicle but he was uncertain whether any other officers searched it with him. Sgt. Kelvin Jaquez testified that he arrived on scene in the midst of PO Musolino's vehicle search and that no other officer participated in the search in his presence (BR 5-10).

PO Musolino decided to search the vehicle of his own volition because he detected a strong odor of marijuana coming from the interior of the vehicle. Her window was rolled down during their conversation, enabling the odor to emanate. PO Galbo, who stood on § 87(2)(b)'s side of the vehicle, also testified to smelling fresh marijuana emanating from the interior of the vehicle immediately upon approach. PO Dang, who arrived on scene slightly later and stood slightly behind the § 87(2)(b)'s door, stated that he did not smell marijuana until § 87(2)(b) stepped out of the vehicle, at which time he detected the odor on § 87(2)(b)'s person. PO Rodriguez could not recall whether he detected any odors of marijuana. Sgt. Jaquez, who arrived on scene after § 87(2)(b) had already been removed from the vehicle, testified to smelling marijuana coming from the vehicle and from § 87(2)(b) and was unable to specify whether it was fresh or lit marijuana that he detected. PO Stephen Katsalidas smelled marijuana on § 87(2)(b)'s person after he stepped out of the vehicle, but noted that he was not standing close enough to the vehicle to determine whether marijuana odors emanated from it as well (BR 5-10).

The smell of marijuana alone sufficiently provides officers with probable cause to search a vehicle. People v. Johnson, 901 N.Y.S.2d 909 (2009)(BR 17).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **unsubstantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Allegation H – Abuse of Authority – In front of 2701 Sedgwick Avenue in the Bronx, an officer damaged § 87(2)(b)'s property.

§ 87(2)(b) reported finding the following damage to her vehicle when she returned to it after the conclusion of the vehicle stop: broken cigarettes, a broken lower dashboard divider, and broken sun visor clasps. She provided photographs of this alleged damage (BR 12-15). Neither § 87(2)(b) nor § 87(2)(b) observed or heard the damage occurring and therefore could not specify which officer caused the damage. Notably, both § 87(2)(b) and § 87(2)(b) testified that the vehicle search lasted 20-25 minutes in total (BR 3, BR 4).

PO Musolino denied breaking any of these items. Upon viewing the photographs of the alleged damage, he did not recall whether he searched any of the areas alleged to have been damaged. No other officer acknowledged breaking these items or reported viewing PO Musolino or any officer breaking these items, and they each denied hearing sounds consistent with plastic being broken. Sgt. Jaquez, in regards, offered that the vehicle was “an old car.” § 87(2)(g) the consensus amongst the officers on scene that the entire stop lasted 5-10 minutes and that the vehicle search itself lasted between 1 and 2 minutes (BR 5-10).

§ 87(2)(g)

it is recommended that **Allegation H** be closed as **officer unidentified**.

Allegation I – Abuse of Authority – In front of 2701 Sedgwick Avenue in the Bronx, an officer searched § 87(2)(b)

Allegation J – Abuse of Authority – In front of 2701 Sedgwick Avenue in the Bronx, an officer seized § 87(2)(b) **s property.**

At the conclusion of the incident, § 87(2)(b) reported returning to her vehicle to find the contents of her purse, which had been resting on the back seats, had been searched. She also reported that a small plastic pill case, which contained a total of six prescription pills prescribed to her, was missing. She did not witness this specific search herself, nor the seizure of the pills, and could therefore not specify which officer was allegedly responsible. § 87(2)(b) did not observe these allegations either (BR 3, BR 4).

PO Musolino and PO Rodriguez did not recall searching any purses inside of the vehicle and did not recall locating any pills during the vehicle search. PO Musolino stated that, to his recollection, no contraband was found in the vehicle whatsoever. He noted that, procedurally, pills would need to be tested to determine whether or not they were a controlled substance, and he did not recall doing so in this case. None of the officers reported finding any prescription pills inside of § 87(2)(b)s vehicle, or hearing any conversation amongst officers about pills. No police documentation was prepared noting the discovery of any pills (BR 5-10).

§ 87(2)(g)

It is therefore recommended that **Allegation I** and **J** be closed as **officer(s) unidentified**.

Allegation K – Discourtesy – At the 50th Precinct stationhouse, PO Robert Musolino spoke discourteously to § 87(2)(b)

§ 87(2)(b) visited the 50th Precinct stationhouse about an hour after the incident to report a missing license. It is undisputed that, while in the stationhouse filling out a Criminal Complaint Report provided by Telephone Switchboard Operator PO Oscar Nieves, she spoke to PO Musolino. § 87(2)(g)

§ 87(2)(b) who entered the stationhouse alone, alleged that when she inquired whether PO Musolino still had her license, he said, “Maybe if your boyfriend wasn’t running his fucking mouth so much you’d have noticed I gave it back to you.” (BR 3).

PO Musolino acknowledged speaking to § 87(2)(b) informing her that he did not have her license, and encouraging her to file a report. He denied making the above statement to § 87(2)(b) or using any profanity toward her. PO Galbo, PO Nieves, and Sgt. Jaquez, were all in the stationhouse and saw § 87(2)(b) there, but none were present for her conversation with PO Musolino (BR 5, BR 6, BR 9, BR 11).

§ 87(2)(g)

It is therefore recommended that **Allegation K** be closed as **unsubstantiated**.

Squad: 15

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date